

25AVCV01199 25AVCV01199

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

K.Z., a minor by and through her Guardian ad Litem, JOSE ZAMORA,

Plaintiff,

v.

PALMDALE SCHOOL DISTRICT; THE PALMDALE AEROSPACE ACADEMY, INC.; YANCY ROMERO; and DOES 1 through 100, inclusive,

Defendants.

Case Number 25AVCV01199

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: August 11, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a sexual assault of a minor case, arising from Defendant Yancy Romero's (Romero) alleges assault of minor student, Plaintiff K.Z. (Plaintiff) on school property and in the course and scope of his employment as a temporary teacher with Defendants Palmdale School District (PSD) and Palmdale Aerospace Academy, Inc. (PAA). Plaintiff moves the Court for an order compelling production in of documents requested.

On September 16, 2025, Plaintiff, by and through her Guardian ad Litem and father Jose Zamora (Zamora), filed a complaint against Defendants Romero, PSD, and PAA, asserting three causes of action for (1) negligence, (2) negligent hiring, retention, and supervision, and (3) sexual battery. Plaintiff alleges that during the 2024-2025 school year, beginning on approximately August 5, 2024, Plaintiff was a student enrolled in PAA and assigned to the sixth grade classroom of Romero. (Compl., ¶ 15.) Immediately after Plaintiff began attending PAA, Plaintiff alleges Romero began sexually grooming her, and that his sexual misconduct towards her was open and obvious, captured and recorded on campus surveillance videos, and frequently witnessed by staff and students and reported to administrators. (Compl., ¶¶ 16-17.)

Plaintiff alleges that on October 31, 2024, Romero held Plaintiff alone inside of his classroom and sexually molested her against her will. (Compl., ¶ 18.) On November 8, 2024, Plaintiff asserts that a student who witnessed Romero inappropriately touch Plaintiff reported the misconduct to PAA staff, but PAA failed to make a mandatory report of suspected child abuse to law enforcement, concealed the report, and did not notify Plaintiff's parents. (Compl., ¶ 19.) On November 12, 2024, PAA staff questioned Plaintiff about Romero and informed Plaintiff that other students and staff had reported seeing Romero inappropriately touching her, and Plaintiff disclosed the molestation, assault, and harassment. (Compl., ¶ 20.) PAA failed to make a report and did not promptly notify Plaintiff's parents. (Compl., ¶ 20.)

Plaintiff alleges that PAA had actual and constructive notice of the danger Romero posed to students, as in October 2023, five first grade students reported to Desert Rose Elementary School (DRES), a school within PSD, that Romero sexually molested, harassed, and assaulted them. (Compl., ¶¶ 21-23.) Romero was terminated after PSD found one of the reports to be credible, and PSD then moved Romero from DRES to PAA, and PAA and PSD concealed Romero's history of sexually abusing minor students, failed to make the mandatory notification to the Commission on Teacher Credentialing, failed to warn parents, failed to adequately supervise Romero or PAA students, and employees, administrators, and agents of PAA and PSD knew information giving rise to a reasonable suspicion of Romero's criminal sexual misconduct towards minors and failed to take any action. (Compl., ¶¶ 24-26; Motion, p. 2:18-23.) After Plaintiff reported her abuse, Romero was terminated and criminally prosecuted. (Motion, p. 2:23-24.)

On October 23, 2025, PAA filed an answer.

On December 5, 2025, PSD filed an answer.

On December 22, 2025, Romero filed an answer.

On April 6, 2026, Plaintiff filed the present motion to compel production of documents from PAA.

On June 3, 2026, Plaintiff filed an amended motion to compel [1].

On July 29, 2026, PAA filed an opposition.

On August 4, 2026, Plaintiff filed a reply.

II. Preliminary Procedural Issues

Meet and Confer – A motion to compel further responses to an inspection demand must be accompanied by a meet and confer declaration. (Code Civ. Proc. § 2031.30, subd. (b)(2).)

Here, Plaintiff's counsel asserts that the parties have undergone extensive meet and confer efforts to resolve the issues raised in the present motion, including Plaintiff's proposal of a Protective Order and FERPA stipulation to protect parties and streamline discovery, which was ultimately agreed on by both parties but never executed, and a February 17, 2026 meet and confer letter after receipt of PAA's discovery responses requesting additional documentation, which PAA responded to only by amending its privilege log. (Ganci Decl., ¶¶ 2-4, Motion, p. 3:16-4:3.) PAA confirms that there have been extensive meet and confer efforts by the parties. (Opp., p. 8:2-4.) These efforts satisfy the meet and confer requirement.

III. Legal Standard

Standard for Compelling Production – A party responding to requests for inspection must either provide a statement of compliance, represent that it lacks the ability to comply, or object. (Code Civ. Proc. § 2031.210.)

If a party responds with a statement of compliance, the statement must indicate whether production will be allowed in whole or in part and that all documents in the responding party's possession, custody or control to which no objection is being made will be included in the production. (Code Civ. Proc. § 2031.220.)

If a party responds that a particular demand cannot be complied with it must include a representation that a diligent search and reasonable inquiry have been made and that the inability to comply is because the item has never existed, has been lost, stolen, or misplaced, or has never been in or is no longer in the responding party's possession, custody, or control; such response must also identify the name and address of any person or entity known or believed to have possession, custody, or control of the item or category of item. (Code Civ. Proc. § 2031.230.) If a response includes objections, a privilege log identifying documents being withheld must be provided. (Code Civ. Proc. § 2031.240.)

When a party propounding demands for inspection deems responses to the responses to be incomplete or evasive, or deems objections to be without merit, the propounding party may move for an order compelling further responses. Such motion must set forth facts showing good cause for the discovery, be accompanied by a meet and confer declaration, and include a separate statement. Such motion must also be made within 45 days of verified responses or supplemental responses, or on or before any specific later date the parties have agreed to in writing. (Code Civ. Proc. § 2031.310, subds. (a)-(c).)

A motion to compel further response to requests for production of documents "shall set forth specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc. § 2031.310, subd. (b)(1).) "To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact." (Digital Music News LLC v. Superior Court (2014) 226 Cal.App.4th 216, 224, disapproved on other grounds in Williams v. Superior Court (2017) 3 Cal.5th 531.)

IV. Discussion

Application – Plaintiff moves to compel PAA to produce further responses and documents responsive to Plaintiff's Request for Production of Documents, Set One, pursuant to Code of Civil Procedure section 2031.310. (Notice of Motion, p. 1:27-2:2.) Specifically, Plaintiff moves in regard to 10 requests:

Request Nos. 5, 6, 7, 9, and 10 seek documents related to Plaintiff, documents reflecting all complaints, investigations, witness statements, or communications about Plaintiff's abuse or reports of abuse made to PAA about Romero by other students.

Request Nos. 11 and 19 seek Romero's personnel file and all documents related to his termination and suspension.

Request No. 18 seeks all communications with law enforcement about Romero.

Request Nos. 27 and 28 seek video surveillance of Romero, including of Plaintiff, and PAA has identified a single day of footage in its possession from October 31, 2024.

As a preliminary matter, the Court rejects PAA's argument that the motion should be denied because Plaintiff failed to file a separate declaration setting forth factual evidence giving rise to good cause for compelling production. Code of Civil Procedure section 2031.310, subdivision (b) requires only that (1) the motion shall set forth specific facts showing good cause justifying the discovery, (2) the motion shall be accompanied by a meet and confer declaration, and (3) the motion shall be accompanied by a separate statement unless the court allows a concise outline of the request in lieu thereof. Plaintiff's motion satisfies these requirements.

a. Protective Order

The parties reached an agreement as to a stipulated protective order and a FERPA order concerning the discovery in this case, which was proposed by Plaintiff, reviewed, modified, and redlined by PAA on December 11, 2025, and the changes were agreed to by Plaintiff. (Ganci Reply Decl., ¶¶ 2-3.) Plaintiff asserts counsel has recirculated the final stipulated protective order and has requested PAA's signature on the order since December 22, 2025 and PAA has failed to respond to requests for signature. (Id at ¶ 3.) PAA fails to set forth any reason why it has failed to sign either order and raises no objections or proposed amendments to the orders as proposed and previously agreed upon by the parties. Furthermore, Plaintiff's counsel asserts that counsel for PSD and Romero have provided executed copies of the proposed stipulated orders. (Reply, p. 2:5-7, n. 1.)

Accordingly, the proposed stipulated protective order and the proposed FERPA order are accepted and shall become signed orders of this Court. (Ganci Decl., Ex. 1, 2.)

b. Request No. 5

Request No. 5 seeks "All WRITINGS RELATED TO Plaintiff K.Z., including but not limited to her complete cumulative file, special education file, confidential file, nurse's notes, counseling notes, photographs, communication notebook, logs, incident reports, injury reports, attendance records, classroom passes, notes, behavior data, observations, assessments, student statement(s) and/or data maintained in YOUR Student Information System (SIS) or any other database."

Defendant's response reads: "After a diligent search and reasonable inquiry, Responding Party will comply with this request and produce nonprivileged responsive documents. Palmdale Aerospace Academy 001541-001594. Investigation and discovery are ongoing. Responding Party reserves the right to supplement all discovery responses up to and including the time of trial as additional facts are ascertained, analyses are made, research is completed, documents are obtained and contentions are made, and to rely on expert opinion regarding the information sought by this interrogatory and other discovery at the time of trial.

PAA presently asserts that it has produced all responsive documents in its possession, custody, or control as to Request No. 5 and no additional documents exist. (Shoga Decl., ¶ 9; Ganci Reply Decl., Ex. C.)

Plaintiff asserts further response is required, as PAA withholds critical documents related to Plaintiff's abuse, investigation of complaints made against Romero, complaints and witness statements made by other students, video surveillance of Romero with other minors, and other unknown documents of critical relevance based on FERPA and privacy concerns.

The Court notes that Plaintiff's arguments to this effect do not necessarily pertain to request number 5, as the request does not seek any records, writings, or other documentation as to complaints made against Romero by other students not pertaining to Plaintiff or footage of Romero with other students. Furthermore, the withheld documentation noted by Plaintiff falls under other requests for production, and the Court does not find it appropriate to order production of all documents sought by construing this request as a broad catch-all category, when tailored, specific requests for the non-produced documentation was requested under other requests as detailed below.

To the extent that PAA withheld any responsive documents to this request on the basis of privilege, the Court addresses the requests and production orders below. Therefore, Plaintiff's motion is DENIED as to request number 5.

c. Request No. 6

Request No. 6 seeks "All WRITINGS RELATED TO ROMERO's SEXUAL MISCONDUCT towards Plaintiff K.Z. at any time."

PAA objected on the grounds of attorney-client and attorney work product privileges, that the request forces PAA to disclose its trial strategy and witnesses, that it invades the privacy rights of third parties, that the request is vague, overbroad, unduly burdensome, and that it seeks confidential student information protected by FERPA. PAA declared it could not disclose information without a court order authorizing disclosure, and that it would produce responsive non-privileged documents following entry of a court order.

i. Attorney-Client and Work Product Privilege

As to attorney-client privilege and work product, PAA submitted a privilege log which asserts a privilege as to only "Romero's personnel file documents." (Shoga Decl., Ex. 2.) PAA argues that this request seeks all writings relating to Romero's alleged sexual misconduct towards Plaintiff, including documents generated during counsel's investigation of anticipated litigation. (Opp. Sep. Statement, p. 9:3-16.) PAA argues that under Code of Civil Procedure section 2018.030, investigative materials prepared by counsel are subject to the work-product doctrine and are privileged.

The attorney-client privilege protects confidential attorney-client communications, defined as "information transmitted between a client and his or her lawyer in the course of that relationship and in confidence." (Evid. Code § 952.) The work-product doctrine provides absolute or qualified protection against the disclosure of attorney work-product, depending on whether the work-product contains the "impressions, conclusions, opinions, or legal research or theories." (Code Civ. Proc. § 2018.030, subd. (a).) Writings containing an attorney's impressions, conclusions, and opinions are absolutely protected from discovery. (Code Civ. Proc., § 2018.030, subd. (a).) "When a witness's statement and the attorney's impressions are inextricably intertwined, the work product doctrine provides that absolute protection is afforded to all of the attorney's notes". (Rico v. Mitsubishi Motors Corp. (2007) 42 Cal.4th 807, 814.)

All other work product is entitled to only qualified protection. The court may order disclosure if it determines that "denial of discovery will unfairly prejudice the party seeking discovery in preparing that party's claim or defense or will result in an injustice." (Code Civ. Proc., § 2018.030, subd. (b).) Witness statements taken (in writing or recorded) by attorneys or their agents are entitled, at a minimum, to qualified work product protection. (Code Civ. Proc., § 2018.030, subd. (b).) Such statements are entitled to absolute work product protection if the party resisting discovery makes a showing that the

discovery would reveal the attorney's tactics, impressions or evaluation of the case, or would result in opposing counsel taking undue advantage of the attorney's industry or efforts. (Coito v. Superior Court (2012) 54 Cal.4th 480, 495-500 [disapproving prior contrary authority]; Curtis v. Superior Court (2021) 62 Cal.App.5th 453, 469-470.)

The court may order disclosure upon determining that "denial of discovery will unfairly prejudice the party seeking discovery . . . or . . . result in an injustice." (Code Civ. Proc., § 2018.030, subd. (b); Meza v. H. Muehlstein & Co. (2009) 176 Cal.App.4th 969, 977.) A party seeking disclosure of an attorney-directed witness statement over a claim of work product protection has the burden to establish that withholding disclosure would unfairly prejudice the party in preparing its claim or defense. (Coito v. Superior Court, *supra*, 54 Cal.4th at 499-500.)

PAA argues the documents at issue contain materials generated during counsel's investigation in anticipation of litigation. However, Romero's personnel file, the only item identified as privileged as to this request on PAA's privilege log, facially does not fall within attorney work product. Furthermore, not a single document identified on the privilege log identifies any attorney as author of a document, nor contains any information or detail surrounding the asserted work product privilege. Additionally, PAA's assertion that all writings related to Romero's sexual assault of Plaintiff were made in anticipation of litigation by an attorney is unbelievable, and there is no indication that any or all writings were made by an attorney in anticipation of litigation, nor that any of the documents requested contain attorney opinion, impression, conclusion, or legal research or theories, particularly where the request seeks documents such as student and teacher reports of misconduct and disclosures from Plaintiff regarding the assaults and harassment. Many of these writings would be expected to be produced, memorialized, and retained in the normal course of the operation of a school, and PAA's privilege log fails to meet the burden of establishing that this privilege applies to any or all of the requested documents.

The same is true of the attorney-client privilege asserted by PAA. The privilege log is silent to this end, and documents maintained in the course of employment, investigation of student and staff complaints, and internal investigations of a teacher for sexual molestation of a student are not subject to blanket protection on the basis that PAA anticipated that a lawsuit may ensue. PAA does not assert that any record sought contains communications with an attorney, and even if such documents were ultimately provided to counsel, this does not invoke attorney-client privilege, as it does not indicate the documents were prepared for counsel or prepared in confidence with counsel. Here, the clear dominant purpose of the creation of most of the materials sought was for PAA as an institution to investigate complaints of teachers and students of an employee's sexual misconduct and maintain an appropriate and safe learning environment, not to prepare for trial.

Therefore, PAA's objection on this ground is unmeritorious.

ii. Privacy

PAA also argues this request invades Romero's privacy rights in his personnel file and employment records and students' privacy rights to the extent they are named within the personnel file. The privacy rights of students are equivalent in California under Education Code section 49076 are equivalent to the rights under FERPA. As such, potential infringements on student privacy will be addressed in the following section.

When evaluating invasions of the right to privacy in discovery, the party asserting a privacy right must establish "(1) a legally protected privacy interest; (2) a reasonable expectation of privacy in the circumstances; and (3) conduct by defendant constituting a serious invasion of privacy." (Hill v. National Collegiate Athletic Assn. (1994) 7 Cal.4th 1, 39-40.) A responding party may prevail by negating any of these three elements "or by pleading and proving, as an affirmative defense, that the invasion of privacy is justified because it substantively furthers one or more countervailing interests." (Id. at 40.) "[T]he party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy." (Williams v. Superior Ct. (2017) 3 Cal.5th 531, 533.) A court then balances these competing considerations. (Ibid.) "[O]bvious invasions of interest fundamental to personal autonomy must be supported by a compelling interest." (Id. at 557.) When lesser interests are at stake, "the strength of the countervailing interest sufficient to warrant disclosure of private information var[ies] according to the strength of the privacy interest itself, the seriousness of the invasion, and the availability of alternatives and protective measures." (Id. at 556.)

California's Constitutional right to privacy protects against the unwarranted, compelled disclosure of various private or sensitive information regarding one's personal life. (See *Britt v. Superior Court* (1978) 20 Cal.3d 844, 855-856.) This privacy right extends to employment records. (See *Board of Trustees v. Superior Court* (1981) 119 Cal.App.3d 516, 526, disapproved on other grounds by *Williams*, supra, 3 Cal.5th at fn. 8.)

Thus, Romero has a legally protected privacy interests in his employee record and personnel file. The Court also finds that Romero has a reasonable expectation of privacy in these records. (*Riske v. Superior Court* (2016) 6 Cal.App.5th 647, 656 [recognizing this privacy right in the context of production of a peace officer's records]; *Associated Chino Teachers v. Chino Valley Unified School Dist.* (2018) 30 Cal.App.5th 530, 539 [in production of employment records of a public school teacher]; *Board of Trustees v. Superior Court* (1981) 119 Cal.App.3d 516, 528 ["It is manifest that the subject documents and communications of Dr. Dong's personnel, tenure, and promotion files, whether relating only to his initial employment, or also to his 'promotion, additional compensation, or termination,' were communicated to the University in confidence, and were thus covered by the communicators' constitutional right of privacy"] (disapproved of on a narrower point by *Williams*, supra, 3 Cal.5th 531).)

However, as to the seriousness of the invasion, Plaintiff's requests are narrowly tailored and limit the discovery request to documentation relating to Plaintiff and Romero's sexual misconduct, reports of sexual misconduct, and discipline as a teacher. Much of the discovery would, at most, reveal records related to Romero, his alleged misconduct, or records related to teacher and staff reports of Romero's alleged sexual assault, harassment, and molestation of Plaintiff, which is the central issue of this case, and presents a very limited privacy concern in the reporting of such conduct. Plaintiff has also agreed to redaction or withholding as appropriate of Romero's personal contact information, address, financial and benefit documentation, and tax documents. Furthermore, not only would the names of any individuals involved with reporting or investigating Plaintiff's assault identify witnesses to Romero's alleged sexual misconduct, but a protective order limiting disclosure of confidential materials will quash any serious privacy concerns.

To the extent that Plaintiff seeks production of documentation related to Romero's assault of other students, these documents, including any reports, investigations, and findings bear directly on PAA's knowledge of Romero's misconduct prior to the incidents involving Plaintiff, another central issue of this case. For the same reasons above, the invasion cannot be construed as serious in light of the circumstances, particularly because Romero is a party to the case, his assault of other minor students is a central issue, there has already been criminal action taken against Romero for these alleged acts, and he acted in the course and scope of his employment with a public school district.

Thus, the invasion is not serious enough to invoke constitutional privacy concerns.

Even if the Court were to find that the invasion into Romero's right to privacy was serious, Plaintiff has established a countervailing interest which supersedes his right to privacy in these circumstances.

Invasions of interests fundamental to personal autonomy must be supported by a compelling interest in providing the discovery. (*Williams*, supra, 3 Cal.5th at 556, 557.) Under this test, the discovery should be "directly relevant" to a plaintiff's claim and its disclosure be essential to fair resolution of the lawsuit. (*Britt v. Superior Court* (1978) 20 Cal.3d 844, 859.) If the information sought or something equivalent could be obtained through other means, such as by conducting a deposition without reaching for documents, or a less intrusive method of discovery exists, the court will not compel production of the private information. (*Allen v. Superior Court* (1984) 151 Cal.App.3d 447, 449.)

Plaintiff states she needs the information within Romero's personnel file to establish his well-known, documented history of abusing minor students in his care, to establish that PAA hired Romero after an investigation confirmed he abused children at a different school within PSD, and to establish that PAA knew about Romero's prior misconduct, all of which are critically relevant to Plaintiff's claims. (Motion, p. 4:1-8.) Plaintiff also claims any complaints, disciplinary reports, investigation materials, and other documentation reflecting complaints made against Romero by students at PAA show PAA's negligent supervision, and that there are no available alternative means to obtain this information outside of the contents of his personnel file. (Motion, p. 4:8-14.)

Here, Romero is a party to this case for his alleged sexual battery of Plaintiff in the course and scope of Romero's employment. Romero was employed as a public school teacher allegedly after PAA and PSD discovered his sexual assault and molestation of other minor children during his employment as a teacher, and Plaintiff specifically alleges that PAA and PSD, employers of Romero and mandated reporters, negligently hired, retained, and supervised Romero, an allegation based on their purported knowledge of his prior and ongoing sexual misconduct against minor students. Romero's personnel file may likely contain information directly relevant to the claims against him, PAA, and PSD, relevant to the claims that PSD and PAA failed to make a mandatory report upon reports of misconduct, and supportive of the claims that PSD and PAA were made aware of the conduct and failed to act after reports from multiple students and staff.

This discovery is directly related to Plaintiffs' claims, and would also lead to the discovery of the identities of other witnesses. PAA fails to identify any alternatives available to discover documents related to Romero's alleged misconduct, the identities of other witnesses, the extent of PAA's knowledge of the assault, or the actions taken in response to the reports and knowledge of sexual misconduct, all of which are essential to a fair resolution of this case concerning PSD and PAA's knowledge and negligent hiring and supervision. Plaintiff thus has a significant interest in discovering the requested information, which outweighs any concern of infringement on Romero's right to privacy. Because the invasion of the privacy interests at issue is minimal compared to the strength of Plaintiffs' interest in discovering the information, the circumstances weigh in favor of allowing the discovery.

iii. FERPA

Educational records and personally identifiable information of students are protected by FERPA. (20 USC § 1232g.) FERPA bars federal funding to educational agencies and institutions with a "policy or practice" of releasing either "educational records" or "personally identifiable information" without parental consent. (20 USC § 1232g.) The term "educational records" is broadly defined to include "records, filed, documents and other material which ... contains information directly related to a student" and "are maintained by an educational agency or institution or by a person acting for such agency or institution." (20 USC § 1232g, subd. (a)(4)(B).) "Personally identifiable information" does not extend to "directory information," which includes the student's name, address and telephone number. (20 USC § 1232g, subd. (a)(5)(A).) FERPA only punishes educational institutions that release such records as a matter of policy or practice. (See *Ragusa v. Malverne Union Free School Dist.* (E.D.N.Y. 2008) 549 F.Supp.2d 288, 291-292; see also *Rim of the World Unified School Dist. v. Superior Court* (104 Cal.App.4th 1393, 1396-1398 [FERPA preempted former California statutory provisions requiring all student expulsions to be made public].) It does not create a "privilege" preventing disclosure of students' records or bar disclosure pursuant to court order. (*Ragusa*, supra, 549 F.Supp.2d at p. 291, 293.) Additionally, Cal. Educ. Code § 49076 allows access to pupil records with either parental consent or under court order. (See Cal. Educ. Code § 49076, subd. (a) ["A school district shall not permit access to pupil records to a person without written parental consent or under judicial order except as set forth in this section and as permitted by Part 99 (commencing with Section 99.1) of Title 34 of the Code of Federal Regulations."].)

Here, the records at issue are not protected by FERPA. None of the records within Romero's personnel file constitute educational records of any third party student at PAA, nor does the request seek any personal educational record of any third party student. All of Plaintiff's requests pertain to Romero directly, and any collateral mention of another student does not render the documents in which they are mentioned coverable by FERPA. Furthermore, even where a student's name is contained within Romero's personnel file, for example in connection with a report of misconduct or statement relating thereto, student names are not considered personally identifiable information within the meaning of FERPA, nor are statements made in connection with disciplinary action of a teacher considered educational records. In *BRV, Inc. v. Superior Court* (2006) 143 Cal.App.4th 742, 754-55, the Court held that even where a report identified students by name and detailed actions taken by and against those students, the report did not directly relate to the private educational interests of the students, and the purpose of the report was to investigate complaints of misconduct by an employee. The Court reasoned that the report did not fall within FERPA's ambit, as it was not regularly done in the normal course of business and was not the type of report regularly maintained in a central location along with education records such as in separate files for each student. (Id at 755.) While PAA attempts to distinguish this case on the grounds that *BRV* is a CPRA case, the reasoning stands.

In any event, even if these records risk disclosing information protected by FERPA, disclosure of such information in civil discovery does not constitute a policy or practice of releasing educational records or personally identifiable information. Even if it did, the Court may nonetheless order PAA to produce the information, and the Court notes that a FERPA Order has been drafted and agreed upon by all parties to this action, minimizing privacy concerns. Thus, FERPA does not prohibit PAA from producing the requested documentation. Furthermore, "[b]y its plain terms, FERPA does not create an evidentiary privilege,

and the Court agrees with prior decisions holding that documents covered by FERPA are indeed discoverable in the context of a civil action.” (Garza v. Scott & White Mem. Hosp. (2005) 234 F.R.D. 617, 624.)

Therefore, PAA is not entitled to withhold the production of Romero’s personnel file on the basis of FERPA protection.

iv. Vague, Overbroad, and Unduly Burdensome

“The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” (Code Civ. Proc. § 2017.020, subd. (a).) Objections on the ground of “burden must be sustained by evidence showing the quantum of work required” and “to support an objection of oppression there must be some showing either of an intent to create an unreasonable burden or that the ultimate effect of the burden is incommensurate with the result sought.” (West Pico Furniture Co. of Los Angeles v. Superior Court In and For Los Angeles County (1961) 56 Cal.2d 407, 417.) It is the objecting party’s burden to supply evidence that the responsive burden would be “undue or excessive, relative to the likelihood of admissible evidence being discovered.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 550.) Even if discovery requests are found to be burdensome and oppressive, trial courts do not deny discovery completely but set “partial limitations on discovery” by weighing “the relative importance of the information against the hardship entailed by its production.” (Borse v. Superior Court (Southern Pac. Co.) (1970) 7 Cal.App.3d 286, 289.) “When discovery requests are grossly overbroad on their face, and hence do not appear reasonably related to a legitimate discovery need, a reasonable inference can be drawn of an intent to harass and improperly burden.” (Obregon v. Superior Court (1998) 67 Cal.App.4th 424, 431.)

The Court does not find any basis in this objection for Romero’s personnel file. PAA has not established how production of this file would result in any undue burden, cost, expense, or time, how the production efforts would be incommensurate with the result sought or the relevance of the documents, or that there would be any hardship in producing the records requested. Furthermore, the Court does not find that the request for Romero’s personnel file, created and maintained during his employment with PPA beginning in 2024, to be vague or ambiguous or overbroad. Finally, this request is unquestionably related to Plaintiff’s claims related to PAA and PSD’s knowledge of, and failure to take action regarding, Romero’s alleged misconduct. This objection is without merit.

Therefore, Plaintiff’s motion is GRANTED as to request number 6 with limitations set forth below.

d. Request No. 7

Request No. 7 seeks “All WRITINGS RELATED TO YOUR INVESTIGATION of ROMERO’s SEXUAL MISCONDUCT towards Plaintiff K.Z.”

PAA objected on the grounds of attorney-client and attorney work product privileges, that the request forces PAA to disclose its trial strategy and witnesses, that it invades the privacy rights of third parties, that the request is vague, overbroad, unduly burdensome, and that it seeks confidential student information protected by FERPA. PAA declared it could not disclose information without a court order authorizing disclosure, and that it would produce responsive non-privileged documents following entry of a court order.

While PAA is correct that generally, witness statements obtained by an attorney are subject to qualified work product protection, here, PAA has failed to make any showing on a privilege log as required to establish that any part of the investigation was conducted by an attorney or that any statements made by students or staff were obtained by counsel in anticipation of litigation. (Coito v. Superior Court (2012) 54 Cal.4th 480, 496.) PAA identifies only “Investigations and Reports” from “Multiple dates in 2024” as privileged information. (Shoga Decl., Ex. 2.) As above, PAA has failed to establish that any of these reports are privileged, authored by counsel, contain attorney impressions, opinions, conclusions, or legal analysis, or state with any specificity the title of the document, the date it was authored, or who authored it. Absent any showing by PAA that these investigations and reports were made with the primary purpose of preparing for trial (as opposed to investigations and reports being made to fulfill PAA’s necessary obligation as an educational institution to investigate complaints and

reports of sexual abuse of a minor child in the school's care in the normal operation of the school), the Court cannot give weight to this objection.

The Court is also not convinced that disclosure of such materials would force PAA to disclose its trial strategy. The privilege log identifies reports and investigations taking place throughout 2024, Plaintiff did not submit a written claim for damages pursuant to the Government Claims Act until April 22, 2025, and this case was not initiated until September 16, 2025. (Compl., ¶ 43.) While the Court recognizes the possibility that PAA began trial preparations and legal strategy decision-making for litigation of the present action before any such action was actually raised or filed, PAA has not established that counsel was retained for the purpose of defending or prosecuting this action or any other action, nor that any of the reports or investigative materials contain any trial strategy, research, or other preparation material. PAA may not withhold discoverable, relevant documentation or evidence solely on the basis that it plans to use such evidence itself.

The Court also finds PAA's objection on the grounds of disclosure of witnesses unfounded. Plaintiff, as a party to this action, has a right to discover any matter relevant to the subject matter involved in this action, or to the determination of any motion made in this action, if the matter is admissible or appears reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc., § 2017.010.) "This right includes an entitlement to learn the identity and location of persons having knowledge of any discoverable matter." (Williams, *supra*, 3 Cal.5th at 541.) Discovery of witnesses to Romero's alleged harassment and abuse of Plaintiff unquestionably falls within the ambit of basic discovery, and PAA cannot withhold information of percipient witnesses to the acts alleged in Plaintiff's complaint because it may itself use certain individuals as witnesses at trial.

Finally, for the reasons stated above as to Request No. 6, the Court finds that none of Defendants objections to the production of writings related to the investigation of Romero's misconduct towards Plaintiff are meritorious.

Accordingly, Plaintiff's motion as to request number 7 is GRANTED with limitations set forth below..

e. Request No. 9

Request No. 9 seeks "All WRITINGS related to the report made on or around November 8, 2024 by a student who witnessed ROMERO touch K.Z."

PAA objected on the grounds of attorney-client and attorney work product privileges, that the request forces PAA to disclose its trial strategy and witnesses, that it invades the privacy rights of third parties, that the request is vague, overbroad, unduly burdensome, and that it seeks confidential student information protected by FERPA. PAA declared it could not disclose information without a court order authorizing disclosure, and that it would produce responsive non-privileged documents following entry of a court order.

For the same reasons as set forth above, the Court rejects PAA's objections to this discovery request.

Plaintiff's motion as to request number 9 is GRANTED with limitations set forth below.

f. Request No. 10

Request No. 10 seeks "All WRITINGS RELATED TO YOUR INVESTIGATION of the report made on or around November 8, 2024 by a student who witnessed ROMERO touch K.Z."

PAA objected on the grounds of attorney-client and attorney work product privileges, that the request forces PAA to disclose its trial strategy and witnesses, that it invades the privacy rights of third parties, that the request is vague, overbroad, unduly

burdensome, and that it seeks confidential student information protected by FERPA. PAA declared it could not disclose information without a court order authorizing disclosure, and that it would produce responsive non-privileged documents following entry of a court order.

For the same reasons as set forth above, the Court rejects PAA's objections to this discovery request.

Plaintiff's motion as to request number 10 is GRANTED with limitations set forth below.

g. Request No. 11

Request No. 11 seeks "For the period ROMERO worked at PAA, all WRITINGS RELATING TO ROMERO, including but not limited to his personnel file, human resources file, site file, principal file, union file, credentials, certifications, endorsements, pre-employment background check, reference check, DOJ checks, photographs, videos, transcripts, employment application, resume, references, performance reviews, observations, assessments, evaluations, write-ups, reprimands, COMPLAINTS, INVESTIGATIONS, allegations, discipline, memo(s), notes, emails, statements, rebuttals, recommendations, settlements or any agreement between YOU and ROMERO."

PAA objected on the grounds of attorney-client and attorney work product privileges, that the request forces PAA to disclose its trial strategy and witnesses, and that it invades the privacy rights of third parties. PAA declared it was unable to comply with the request because no responsive documents exist in PAA's custody, possession, or control, and PAA is a separate entity from PSD.

For the reasons stated above, the Court rejects PAA's objections to this request.

Further, Code of Civil Procedure section 2031.230 provides that where a party is unable to comply with an inspection demand, the party must state "whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item." PAA presently contends that it has no responsive documents to this request. (Ganci Reply Decl., Ex. 3.)

PAA's response is not code compliant as it does not state why PAA is unable to comply, nor does it state the name and address of the person or entity known or believed to be in possession, custody, or control of the documents. In any event, PAA's response appears at least partially inaccurate, as PAA concedes that it does, in fact, have Romero's personnel file, which PAA states it will disclose on order of the Court. PAA also concedes to having video surveillance footage of Romero, complaints related to Romero, and investigation reports related to Romero. The Court also notes that PAA does not object on the grounds that this request is overbroad or unduly burdensome.

Therefore, Plaintiff's motion as to request number 11 is GRANTED with limitations set forth below.

h. Request No. 18

Request No. 18 seeks "All COMMUNICATIONS YOU had with any law enforcement agency REGARDING ROMERO."

PAA objected on the grounds of attorney-client and attorney work product privileges, that the request forces PAA to disclose its trial strategy and witnesses, and that it invades the privacy rights of third parties. PAA declared it was unable to comply with the request because no responsive documents exist in PAA's custody, possession, or control aside from the report, and that PAA will produce responsive, non-privileged documents following entry of a court order authorizing disclosure consistent

with Penal Code section 11167.5.

In response to this request, PAA identifies a suspected child abuse report made to the Los Angeles County Department of Children and Family Services on November 14, 2024. (Opp., p. 9:9-10.) PAA asserts that compelling the unredacted production of the report is not appropriate, as Penal Code section 11167.5 mandates that the report remain confidential unless disclosed to persons or agencies specified by statute or court order. (Opp., p. 9:10-13.) PAA argues that, at minimum, the mandated reporter's identity and identifying information must remain protected, and production should only occur under specific order addressing the statutory conditions in Section 11167.5. (Motion, p. 9:16-19.)

Penal Code section 11167.5, subdivision (b) "presents an exhaustive list of the agencies and individuals to whom a report of known or suspected child abuse may be disclosed." (Cuff v. Grossmont Union High School Dist., 221 Cal. App. 4th 582, 590-591.) Section 11167.5, subdivision (b)(1) states that reports of suspected child abuse and information contained therein may be disclosed to persons to whom disclosure of the identity of the reporting party is permitted under Section 11167.

Penal Code section 11167 sets forth that the identity of the mandated reporter who made the report shall remain confidential except to limited agencies, persons, and entities, and subdivision (d)(1) states that the identity of the reporter may be disclosed by court order. Therefore, this report is, on court order, discoverable in a civil case. PAA does not argue that this request is irrelevant or should not be disclosed, only that it was prohibited from so disclosing. The Court agrees with PAA that absent a Court order, it has no authority or ability to disclose this report, and to do so would be a misdemeanor. On reply, Plaintiff argues the report at issue here relates to Plaintiff, following Romero's sexual assault of her at PAA, and is relevant to the case. (Reply, p. 9:24-26.) Plaintiff also argues that the identification of the mandated reporter should be disclosed so Plaintiff may depose the individual about what they saw and observed which gave rise to the mandated report. (Reply, p. 9:26-28.)

Here, the Court recognizes the strong policy in favor of confidentiality of mandated reporters. The Court also recognizes the importance of the mandated report of Plaintiff's alleged abuse perpetrated by Romero, the relevance of the information contained on the report to the claims asserted by Plaintiff, and the request to depose the mandated reporter as to what was witnessed leading to the reporting. The Court finds that production of the report and disclosure of the mandated reporter is warranted in this case.

For the reasons stated above, the Court rejects PAA's remaining objections to production.

Plaintiff's request is GRANTED as to request number 18, subject to the stringent limitations set forth below. The parties and counsel are prohibited from disclosure of the identity of the mandated reporter and the contents of the report to any third party under any circumstance.

i. Request No. 19

Request No. 19 seeks "All WRITINGS reflecting YOUR suspension or termination of ROMERO."

PAA objected on the grounds of attorney-client and attorney work product privileges, that the request forces PAA to disclose its trial strategy and witnesses, and that it invades the privacy rights of third parties. PAA declared it was unable to comply with the request because Romero objected to production of his employment records and personnel file on privacy grounds.

For the same reasons as set forth above, the Court rejects PAA's objections to this discovery request.

Plaintiff's motion as to request number 10 is GRANTED with limitations set forth below.

j. Request No. 27

Request No. 27 seeks “All photographs and/or video depicting any portion of ROMERO’s classroom(s) at PAA.”

PAA objected on the grounds that the request was overly broad and unduly burdensome as to time and scope, that it seeks photographs or videos which may contain images of non-party students implicating privacy rights under FERPA, and that the requested records would be produced following entry of a court order authorizing disclosure consistent with FERPA and the California Constitution.

The Court agrees that this request is overly broad and unduly burdensome. There is no limit on this request, whether in time or scope, and plainly read, requires PAA to produce all footage of Romero’s classroom, even before he became a teacher with PAA, on dates and times when Plaintiff was not present, was not a student of PAA, during class time when Plaintiff is not present, and on weekends, holidays, lunch breaks, or other times when the classroom would be entirely vacant. The Court does not find this request reasonable, nor has Plaintiff set forth good cause to compel production. Furthermore, the relevance of video footage pertaining to this case is appropriately narrowed as to request number 28 below.

Therefore, Plaintiff’s motion is DENIED as to request number 27. If, after further investigation and discovery, any incident is discovered which would warrant production of surveillance footage, Plaintiff may make a supplemental, narrowly tailored request within a specified time limit and scope for such footage.

k. Request No. 28

Request No. 28 requests “All photographs and/or video depicting ROMERO with K.Z.”

PAA objected on the grounds that the request was overly broad and unduly burdensome as to time and scope, that it seeks photographs or videos which may contain images of non-party students implicating privacy rights under FERPA, and that the requested records would be produced following entry of a court order authorizing disclosure consistent with FERPA and the California Constitution.

While there is no date limitation in the request, Plaintiff was not a student at PAA until August of 2024 for the 2024-2025 school year, necessarily limiting the temporal scope of the request. However, the Court agrees that this request is overly broad and unduly burdensome, as it would require PAA to provide months’ worth of footage from surveillance cameras around the school property for any frames in which both Romero and Plaintiff are present. While review and production of footage will undoubtedly take time, Plaintiff’s complaint alleges that Romero regularly, on camera, and visibly groomed her by hugging her, inappropriately touching her, engaging in flirtatious conversations, and positioning his body close to hers. (Compl., ¶¶ 16-17.) Because said footage is allegedly available and relevant to the underlying case, the Court finds that there is good cause to compel production of the relevant footage.

The Court therefore limits this request to footage showing such conduct and interactions between Romero and Plaintiff (e.g., not all footage in which Plaintiff and Romero are present in the same frame but separate and apart, like when Romero is teaching at the front of the classroom and Plaintiff is seated). This footage shall be provided from August 1, 2024 through and including December 31, 2024. The Court, for the reasons stated above, disregards PAA’s remaining FEPA and privacy objections.

After further discovery and investigation, if any further dates or incidents of assault, harassment, molestation, or other relevant incidents involving both Plaintiff and Romero are discovered, Plaintiff may file a supplemental, narrowly tailored request for such footage.

Plaintiff’s motion is GRANTED with limitations as to request number 28.

I. Final Holding

Plaintiff's motion is GRANTED in part. PAA is ordered to produce any and all non-privileged responsive documents to Requests Nos. 6, 7, 9, 10, 11, 18, and 19.

Plaintiff's motion is GRANTED in part as to Request No. 28. PAA shall produce any and all video surveillance footage and photographs depicting Romero standing close to Plaintiff, touching Plaintiff, speaking to Plaintiff, hugging Plaintiff, and other one on one interactions between Romero and Plaintiff from August 1, 2024 through and including December 31, 2024.

For any video footage produced, PAA shall blur or otherwise obscure the identities of other children who may appear in the footage or photographs to the extent possible.

PAA shall redact Romero's (1) social security number, (2) home address, (3) phone number, (4) tax documents, (5) benefit records, and (6) payroll records on any or all documents in which they appear.

PAA is ordered to provide amended responses to Plaintiff's request for discovery in accordance with representations made during meet and confer efforts within 30 days of entry of the FERPA and Protective Orders.

PAA has not waived attorney-client or work-product privileges as to any responsive documents. To the extent that there are writings responsive to this request which constitute work product, made by an attorney and subject to privilege, PAA must establish the privilege on an updated privilege log and identify the title or nature, the dates of creation, and the author for each individual document for which the privilege is asserted. PAA must also establish applicability of any documents it contends are protected by attorney-client privilege. An updated privilege log shall be provided within 30 days of entry of the FERPA and Protective Orders.

The contents of the November 14, 2024 mandated report of suspected child abuse and the identity of the mandated reporter shall not be disclosed to any individual, agency, or entity who is not a party or attorney in this case under any circumstances. The contents of the report and the identity of the mandated reporter shall be maintained with the utmost privilege and confidentiality by Plaintiff, Plaintiff's counsel, Defendants, and Defendants' respective counsel to prevent disclosure to any other individual. No person, agency, or entity entitled to disclosure of the report shall, under any circumstance, contact the mandated reporter regarding the contents of the report or the making of the report outside of the formal processes in the litigation of this action.

PAA shall produce all non-privileged responsive documents as ordered herein on a rolling basis within 30 days of entry of the FERPA and Protective Orders. The time for production may be extended upon mutual agreement of the parties.

Plaintiff's motion is DENIED in part as to Request Nos. 5 and 27, without prejudice to future, narrowly-tailored supplemental discovery targeting production which may fall generally within these requests.

V. Conclusion

Plaintiff's motion is GRANTED in part. PAA is ordered to produce any and all non-privileged responsive documents to Requests Nos. 6, 7, 9, 10, 11, 18, and 19 subject to the express limitations set forth herein.

Plaintiff's motion is GRANTED in part as to Request No. 28 subject to the express limitations set forth herein.

Plaintiff's motion is DENIED in part as to Request Nos. 5 and 27.

[1] Given PAA's opposition to the amended motion only, the Court disregards the initial motion to compel filed on April 6, 2026 and takes the amended motion to compel as the operative moving document. Any analysis of or reference to the motion to compel ("Motion"), Notice of Motion, Separate Statement, or supporting Declarations herein is referring to the documents filed in support of the amended motion to compel, filed on June 3, 2026.